

HOUSE No. 4071

The Commonwealth of Massachusetts

PRESENTED BY:

Carole A. Fiola

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to authorizing the conveyance of certain parcels of land in the city of Fall River.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Carole A. Fiola</i>	<i>6th Bristol</i>	<i>1/17/2025</i>

HOUSE No. 4071

By Representative Fiola of Fall River, a petition (accompanied by bill, House, No. 4071) of Carole A. Fiola that the secretary of the Massachusetts Department of Transportation be authorized to convey certain parcels of land in the city of Fall River to the Fall River Redevelopment Authority. State Administration and Regulatory Oversight.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to authorizing the conveyance of certain parcels of land in the city of Fall River.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Notwithstanding section 5A of chapter 3 of the General Laws, section 20 of
2 chapter 6C of the General Laws, section 7E of chapter 81 of the General Laws or any other
3 general or special law to the contrary, the secretary of the Massachusetts Department of
4 Transportation or a designee, shall convey to the Fall River redevelopment authority certain
5 parcels of land, owned by the Massachusetts Department of Transportation, containing 20+/-
6 acres of vacant land, previously taken and used for highway purposes, located along Davol street
7 in the city of Fall River to be more fully described on a survey to be prepared at the time of
8 transfer by the Fall River redevelopment authority and approved by the Massachusetts
9 Department of Transportation. Said conveyance shall be subject to adequate compensation as set
10 forth in section 3 of this act and agreed to by executive heads of the Massachusetts Department
11 of Transportation and the Fall River redevelopment authority.

12 SECTION 2. (a) Notwithstanding chapter 121B of the General Laws or any other general
13 or special law to the contrary, the Fall River redevelopment authority may purchase from the
14 Massachusetts Department of Transportation subject to terms acceptable to the parties and to the
15 parcels of land described in this act.

16 (b) The Fall River redevelopment authority may develop the parcels of land described in
17 this act for residential, retail, commercial, restaurant and other economic development purposes,
18 without the necessity of adopting or adhering to an urban renewal plan, as defined in section 1 of
19 chapter 121B of the General Laws, and with respect to said land the Fall River redevelopment
20 authority shall enjoy the statutory authority it would possess for land and structures and other
21 property within an urban renewal project as defined by said section 1 of said chapter 121B.

22 SECTION 3. The consideration for the conveyance as authorized in this act by the Fall
23 River redevelopment authority shall reflect 50 per cent of the fair market value of each parcel
24 sold or leased by the Fall River redevelopment authority over a 10-year period from the time of
25 the enactment of this act. The parcels shall be conveyed in its present condition, as is, where is
26 and with all faults, through the Massachusetts Department of Transportation's standard form
27 release deed.

28 SECTION 4. Notwithstanding any general or special law to the contrary, the Fall River
29 redevelopment authority shall be responsible for all costs and expenses associated with the
30 conveyance authorized in this act including, but not limited to, all costs associated with any
31 engineering, surveys, appraisals and deed preparation as such costs may be determined by the
32 secretary of the Massachusetts Department of Transportation.

SECTION 5. In the event that the parcels of land comprising 20+/- acres conveyed by this act cease to be used by the Fall River redevelopment authority, the developers selected and any other subsequent owners for the purposes described in section 2 of this act at any time then, upon notice by the secretary of the Massachusetts Department of Transportation or a designee, said parcels of land shall revert to the Massachusetts Department of Transportation. Should said parcels of land comprising the 20+ acres revert to the Massachusetts Department of Transportation, any further disposition thereof shall be subject to the provisions of section 5A of chapter 3 of the General Laws, section 20 of chapter 6C of the General Laws and section 7E of chapter 81 of the General Laws and to the prior approval of the general court.

SECTION 6. This act shall take effect upon its passage.